

Abdhesh Kumar v. Executive Engineer, EDD Bisalpur

Allahabad High Court · Division Bench · 20 May 2022 · WRIT - C No. 4156 of 2022 · **Writ disposed; relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ seeking quash of an electricity demand dated 4 September 2021 and correction of the consumer's bill, giving liberty to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, with a short stay of coercive recovery.

FACTUAL SUMMARY

Abdhesh Kumar challenged a demand notice dated 4 September 2021 issued by the Executive Engineer, Electricity Distribution Division, Bisalpur, seeking certiorari to quash the demand, mandamus to correct his electricity bill, and a direction to decide his representation dated 21 September 2021. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection against the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection as alternate remedy to writ

HOLDING

A writ seeking quash of a demand notice and correction of an electricity bill was disposed of without opinion on merits, with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks; if so submitted, the objection is to be decided in accordance with law within the next four weeks after hearing, and no coercive action on the demand is to be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench declined to examine the demand on merits in writ and relegated the consumer to a clause 6.5 objection before the Executive Engineer. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The statutory forum for the disputed demand and bill-correction prayer was treated as an objection under Para 6.5 of the 2005 Code, to be decided in a time-bound manner after hearing. ¶ 4-5

6.5-representation-as-appropriate-remedy Counsel's statement that an objection to the demand would be decided in accordance with law was accepted as the appropriate remedy; the pending representation was not decided in the writ. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 04.09.2021 AND CORRECTNESS OF THE ELECTRICITY BILL

Expressly no opinion on merits; left to a clause 6.5 objection before the Executive Engineer. ¶ 4